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Office Of The Assistant Commissioner Of Customs (10) 26 JUN 2018 COURIER CELL, CSIAIRPORT, SAHAR, MUMBAI-99.

(51)

OFFICE OF THE COMMISSIONER OF CUSTOMS - II
(SPECIAL CARGO COMMISSIONERATE)
AWAS CORPORATE POINT, MAKWANA LANE, ANDHERI-KURLA ROAD, SAHAR, ANDHERI (EAST), MUMBAI-400099.

F.No. Air SCC/01-06/2018-19 Admn. Date: 26.06.2018

STANDING ORDER NO. 10 /2018

Subject: Procedure for e-commerce exports through Post -reg.

Attention is invited of all officers working in Airport Sorting Office (APSO) having office at Speed Post Centre, Near Domestic Airport, Vile Parle (East), Mumbai - 400 099 to CBEC Notification No. 48/2018-Customs (N.T.) & Board Circular No. 14/2018-Customs on the above mentioned subject.

2. As you must be already aware of the fact that in order to cater to e-commerce exports through Foreign Post Office (FPO), the Board has prescribed the declaration forms under "Exports by Post Regulations, 2018". Any IEC holder exporting goods through the FPO, will be eligible for zero rating of exports by way of IGST refund or discharge of LUT.

3. It has been decided that in absence of EDI system at FPOs, the Postal Bill of Export (PBE-I) for e-commerce exports will be processed in manual environment for the time being. However, for the purpose of GST, data will be captured and uploaded through an off-line utility (CAN) provided by DG(Systems). It is clarified that till such time that computers with ICAN facility are installed and operationalized, exporters will be free to follow the procedure contained herein.

4. In above reference, the following procedure is notified through designated FPO for the Exports under e-commerce, not involving MEIS:-

a) Any exporter holding a valid Import-Export Code shall be permitted to export goods by filing a Postal Bill of Export (PBE) in the form prescribed under the "Export by Post Regulations 2018".

b) Every PBE-I (for e-commerce exports) shall be filed in duplicate and shall cover only one consignor, though it can be used for any number of consignees. In other words, there will be no limit on the number of postal shipments which can be effected using a single Postal Bill of Export-I. The exporter shall be required to attach the invoice(s) with the PBE. Format of PBE-I is attached to this Notice as Form-I.

c) In addition, the exporter shall continue filing of the postal label or declaration as per CN22/CN23. An important ingredient of the revised CN 22/ CN23 forms is that a column for "sale of goods" has been added.

d) The PBE along with goods shall be presented to the Customs at the Foreign Post Office.

e) The PBE shall be processed manually.

f) Upon completion of processing of the PBE by Customs, the goods shall be presented to the Postal department, who will acknowledge receipt of the shipment on the PBE and affix the tracking number of each shipment on the same.

g) Upon affixation of the tracking number by postal authorities, the PBE shall be brought back to the Proper Officer for grant of "Let Export Order'. The original PBE will be retained by Customs and the duplicate PBE will be handed over to the exporter or his customs broker.

h) In the case of exports, not involving e-commerce, the PBE-II shall be filed in duplicate and shall cover only one consignor and one consignee though multiple packages between a given consignor and a given consignee can be covered in the same PBE. The remaining procedure will remain same as above. Format of PBE-II is attached to this Notice as Form-II.

i) Further, CBEC vide Circular No.18/2018-Customs dated 13.06.2018 has clarified about the large number of cases of low-value-small-shipments which characterize e-commerce environment & which are exported through post. In such cases, single payments are received by exporters from e-commerce portal companies through normal banking channels. In order to facilitate the exporters in fulfilling multiple low-value-small-shipment orders, PBE-II is allowed to be filed for such shipments. The remaining procedure will remain same as above. It will be duties of officers posted in APSO not only to adhere to above procedure but also to ensure that the same is complied by exporters & postal authorities as well.

5. After this, Postal Authorities will furnish the proof of export of the goods i.e., copy of relevant CN / CP forms, as applicable to different categories of postal mails, to the Customs at the FPO. Essentially, the document must contain the tracking nos. of the parcel along with dispatch identifier. A corresponding entry relating to proof of export will be made in noting register (maintained at APSO) by the staff of APSO designated for this purpose by DC/APSO. Only after receipt of such proof of export, details in ICAN should be uploaded.

6. As the Board has decided to permit Customs Brokers (CBs) to operate at all FPOs for the ease of operations of exporters, it has also been decided that in order to ensure transparency and visibility, CBs will be required to onboard any third-party web application before commencing operations at the FPO.

6 It is clarified that Customs will not be on boarding the web application for conducting any regulatory process. All customs procedures will remain in manual mode, till introduction of EDI at FPOs.

7 It is brought to notice of all concerned that in the case of natural persons (i.e. other than firms & companies) exporting parcels, there is no change in procedure being followed hitherto. It is clarified that they will not be required to file any PBE.

8 In the case of export of jewellery as provided under para 4.48 of the FTP (2015-20), as amended up to 5.12.2017, extant procedures shall continue to be followed.

9 Exports under MEIS through Post will continue to be governed through Circular 36/2016-Customs dated 29th July 2016, except that the declaration form appended to thereto shall now be replaced with PBE-I, which has been prescribed under the new Regulations.

10 Above instructions come in force with immediate effect.

11 Difficulties, if any may be brought to the notice of Deputy Commissioner, (APSO) immediately.

VINAY BRIJ SINGH
COMMISSIONER OF CUSTOMS,
APSC,MUMBAI.

Enclosed:- Form I & II

Copy To :-

1) Chief Commissioner of Customs, Mumbai, Zone-III.
2) All Commissioner of Customs, Mumbai, Zone-III.
3) All Addl./Jt. Commissioner of Customs, Mumbai, Zone-III.
4) All Asst. /Dy. Commissioner of Customs, Mumbai, Zone-III.
5) Asst./Dy. Commissioner of Customs, EDI for uploading on website.
6) Office Copy